



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form A1 Application about Whether the Act Applies

(Disponible en français)

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Section A: When to use this application

You can use this application to have the Landlord and Tenant Board (LTB) determine whether all or part of the *Residential Tenancies Act, 2006* applies to a rental unit or residential complex.

You can make this application if you are the landlord or the tenant.

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Section B: How to complete this application

Read these instructions before completing the application form. You are responsible for ensuring that your application is correct and complete. Follow the instructions carefully when you complete the application form.

The information you fill in on the form will be read electronically; therefore, it is important to follow the instructions below:

- Print clearly or type and do not touch the edges of the boxes.
- If there are more boxes in a line than you need, start from the left and leave the extra boxes blank.
- Do not fill in boxes that do not apply to you (for example, if you do not have a fax number, do not fill in boxes in the space marked "Fax Number").
- If the instructions tell you to shade a box or a circle (for example, circles marked "Yes" or "No"), shade the box or circle completely.

Part 1: General Information

Applicant Information

Shade the appropriate circle to indicate whether you are a landlord or a tenant.

If you are a landlord:

Fill in your name and address. If the landlord is a company, fill in the name of the company under "Company Name". Include both daytime and evening telephone numbers and a fax number and e-mail address, if you have them.

If there is more than one landlord, fill in information about one of the landlords in this section. Provide the names, addresses and telephone numbers of the additional landlords on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/lrb.

If you are a tenant:

Fill in your name. Fill in your address if it is different from the address of the rental unit covered by this application. Include both daytime and evening telephone numbers and a fax number and e-mail address, if you have them.

If two or more tenants live in the rental unit, provide the names, addresses and telephone numbers of any additional tenants on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/lrb.

Address of the Rental Unit, Building or Residential Complex Covered by this Application

Fill in the complete address of the rental unit, building or residential complex, including the unit number (or apartment or suite number) and the postal code.

If the street name includes a direction that will not fit in the five spaces provided (such as Northeast) use the following abbreviations: *NE* for Northeast, *NW* for Northwest, *SE* for Southeast, *SW* for Southwest.

Example:

If the address is: #208 at 1120 Mayfield Road North, London, N6J 2M1, this is how you should complete Part 1 of the application:

Street Number										Street Name																			
1 1 2 0										M A Y F I E L D																			
Street Type (e.g. Street, Avenue, Road)										Direction (e.g. East)					Unit/Apt./Suite														
R O A D										N O R T H					2 0 8														
Municipality (City, Town, etc.)																				Prov.		Postal Code							
L O N D O N																				O N		N 6 J 2 M 1							

Other Parties to the Application

Shade the appropriate circle to indicate whether the other parties to the application are landlord(s) or tenant(s).

If you are the tenant:

The landlord is always an "other party".

Fill in the landlord's name and address. If the landlord is a company, fill in the name of the company under "Company Name". Include both daytime and evening telephone numbers and a fax number and e-mail address,

if you have them.

If you are the landlord:

The tenant is always an "other party".

Fill in the tenant's name and address. Include both daytime and evening telephone numbers and a fax number and e-mail address, if you have them.

If there is more than one other party, provide the names, addresses and telephone numbers of the additional other parties on the [Schedule of Parties](#) form which is available from the LTB's website at tribunalsontario.ca/lrb.

Related Applications

If there are any other applications that relate to this rental unit, and those applications have not been resolved, list the file numbers in the space provided.

Part 2: Reason for Your Application

The *Residential Tenancies Act, 2006* (RTA) applies to most residential rental properties. However, certain types of accommodation are generally not covered under the RTA. This includes hotels, correctional institutions, emergency shelters, accommodation where the occupancy is conditional upon employment and accommodation where the occupant is required to share a kitchen or bathroom facility with the owner or his/her immediate family.

Other types of accommodation are only partially covered by the RTA. This includes non-profit and social housing units.

Also, there are certain provisions of the RTA that only apply to care homes, such as rules for increasing the charges for care services and meals. Other provisions only apply to mobile homes and land lease communities (for example, rules about selling mobile or land lease homes).

You can apply to have the LTB determine whether the RTA or any provision of it applies to one, some or all rental units in the complex. It is up to the member to determine whether or not the RTA applies in any situation.

In the space provided, describe the accommodation (for example, the complex is a hotel, or the rental unit is provided for emergency shelter) and whether or not you think the RTA or any provision of it applies to you. Explain why you believe this.

Fill in the total number of rental units in the complex. Then, fill in how many rental units are covered by your application. If the application covers more than one but not all of the rental units in the complex, list the additional rental units that are covered by the application on a separate sheet and file it with the application.

Part 3: Signature

If you are the landlord, shade the circle marked "Landlord". Then, sign the application form and fill in the date.

If you are the tenant, shade the circle marked "Tenant". Then, sign the application form and fill in the date.

If you are the representative, shade the circle marked "Representative". Then, sign the application form and fill in the date.

Information about the Representative

Complete this section only if you are a representative or agent. Fill in your name, address and contact information in the spaces provided.

Request For Accommodation or French-Language Services

The LTB wants to ensure that everyone who uses its services can ask for and receive accommodation and/or French Language services in order to be able to participate in its proceedings on an equal basis.

Shade the appropriate box or boxes on the form to indicate whether you need accommodation under the Ontario *Human Rights Code*, French-language services or both. The LTB will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

If you require accommodation under the *Human Rights Code*, explain what services you need in the space provided.

Payment Information Form

Complete this form to provide the LTB with the information required to process your application. Your application will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the LTB as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the LTB. You will need to complete the [Fee Waiver Form](#) which is available from the LTB website at tribunalsontario.ca/lrb. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the [Rules of Practice](#) page of the LTB website.

Payment Method

Shade the appropriate box to show whether you are paying by online payment, money order, certified cheque, Visa or MasterCard. You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and application to LTBpayments@ontario.ca.

If you are filing my mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or with debit card if you are filing your application by mail or courier.

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Section C: What to include when you file your application

To file this application, you must include the following:

- The completed A1 application form,
- The application fees. For a list of the LTB's fees visit the [Filing and Fees](#) webpage.

Your application will be refused if you do not pay the application fee.

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Section D: How to file your application

You can file your application in one of the following ways:

- **File by Email, Pay Online**

You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and application to LTBpayments@ontario.ca.

- **By Mail or courier**

Mail or courier your A1 application to the nearest [LTB](#) office.

To find a list of [LTB office locations](#) visit the [LTB](#) website at tribunalsontario.ca/lrb. You can also call the [LTB](#) at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance. If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

- **By Fax**

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to a computer and/or internet or can't visit a local Service Ontario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry (PCI) security compliance requirements, the [LTB](#) cannot accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the [LTB](#) at 1-888-332-3234 for information on how to submit payment information.

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Section E: What to do if you have any questions

You can visit the [LTB](#) website at: tribunalsontario.ca/lrb

You can call the [LTB](#) at 416-645-8080 from within the Toronto calling area, or toll-free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the [LTB](#)'s processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

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